

M/S Hariom Industries Limited v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Another

High Court of Judicature at Allahabad · Division Bench · 3 October 2017 · Writ-C No. 22072 of 2014 · **Writ dismissed; interim vacated following Dev Prayag on clause 4.20**

HEADNOTE

A writ challenging demand of additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 is dismissed, the controversy having been decided against the consumer in Dev Prayag Paper Mill; any interim restraint is vacated.

FACTUAL SUMMARY

The petitioner, M/s Hariom Industries Limited, challenged a notice dated 3 April 2014 by Dakshinanchal Vidyut Vitran Nigam Ltd. demanding additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 21 April 2014 the High Court, noting a similar stay in Supreme Ceramics Limited, restrained the licensee from demanding additional security until further orders. At the final hearing both sides accepted that the same controversy had been decided against the consumer in Dev Prayag Paper Mill on 21 March 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional-security-deposit

HOLDING

The writ challenging a demand of additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 is dismissed. Counsel agreed that the controversy stood decided against the consumer in Dev Prayag Paper Mill, where a challenge to clause 4.20 was found to have no merit. The earlier interim restraint on demanding additional security is vacated. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & 3 Others</i> Writ-C No. 30898 of 2016 (21 March 2017)			2	Referred
<i>M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others</i> Writ Petition No. 51844 of 2009 (order dated 7.10.2009)			1	Referred